

House File 933

H-1160

1 Amend House File 933 as follows:

2 1. Page 1, by striking lines 7 through 21 and inserting:

3 <Sec. _____. Section 135J.1, Code 2025, is amended by adding
4 the following new subsections:

5 NEW SUBSECTION. 2A. *"DMEPOS"* means the same as defined in
6 42 C.F.R. §424.57(a).

7 NEW SUBSECTION. 2B. *"DMEPOS supplier"* means the same as
8 defined in 42 C.F.R. §424.57(a).

9 NEW SUBSECTION. 8A. *a. "Pediatric palliative care center"*
10 means a residential care facility as defined in section 135C.1,
11 that only serves pediatric palliative care patients and that
12 only provides respite care services as defined in section
13 135C.1, and hospice program services.

14 *b.* Notwithstanding section 135C.1, subsection 21, a
15 pediatric palliative care center may provide care and services
16 to individuals who require the services of a registered
17 or licensed practical nurse on a nonemergency basis, and
18 may provide accommodation, board, personal assistance, and
19 other essential daily living activities to fewer than three
20 individuals at any one time.

21 NEW SUBSECTION. 8B. *"Pediatric palliative care patient"*
22 means an individual described by all of the following:

23 *a.* The individual is under twenty-one years of age.

24 *b.* The individual has been diagnosed with a chronic,
25 complex, life-threatening illness that is expected to shorten
26 the individual's life expectancy.

27 *c.* The individual is not expected to survive past twenty-one
28 years of age.>

29 2. By striking page 1, line 35, through page 2, line 10.

30 3. Page 2, line 22, by striking <hospice> and inserting
31 <pediatric palliative care>

32 4. Page 2, line 25, after <a> by inserting <pediatric
33 palliative care>

34 5. Page 2, line 26, after <center, the> by inserting
35 <pediatric palliative care>

1 6. Page 2, line 27, after <the> by inserting <pediatric
2 palliative care>
3 7. Page 2, line 32, after <a> by inserting <pediatric
4 palliative care>
5 8. Page 2, after line 33 by inserting:
6 <5. A pediatric palliative care center shall employ a
7 medical director.
8 6. A pediatric palliative care center shall contract with a
9 hospice program to assist in the provision of core services to
10 pediatric palliative care patients.>
11 9. Page 2, line 34, by striking <5.> and inserting <7.>
12 10. Page 2, line 35, by striking <patient to visit the>
13 and inserting <pediatric palliative care patient to visit the
14 pediatric palliative care>
15 11. Page 3, line 1, after <the> by inserting <pediatric
16 palliative care>
17 12. Page 3, line 2, by striking <patient while the>
18 and inserting <pediatric palliative care patient while the
19 pediatric palliative care>
20 13. Page 3, line 4, by striking <6.> and inserting <8.>
21 14. Page 3, line 5, after <a> by inserting <pediatric
22 palliative care>
23 15. Page 3, line 5, after <the> by inserting <pediatric
24 palliative care>
25 16. Page 3, line 7, by striking <medications.> and inserting
26 <medications, provided that, consistent with the pediatric
27 palliative care patient's interdisciplinary team's plan of care
28 for the pediatric palliative care patient and the pediatric
29 palliative care patient's family, the items are provided by any
30 of the following:>
31 17. Page 3, after line 7 by inserting:
32 <a. The pediatric palliative care patient.
33 b. The pediatric palliative care patient's family.
34 c. A hospice program contracted with the pediatric
35 palliative care center to provide such items.>

- 1 d. A DMEPOS supplier.>
2 18. Page 3, line 8, by striking <7.> and inserting <9.>
3 19. Page 3, line 8, after <by a> by inserting <pediatric
4 palliative care>
5 20. Page 3, line 9, after <the> by inserting <pediatric
6 palliative care>
7 21. Page 3, line 12, after <the> by inserting <pediatric
8 palliative care>
9 22. Page 3, line 13, after <to the> by inserting <pediatric
10 palliative care>
11 23. Page 3, by striking line 14 and inserting <pediatric
12 palliative care patient's departure, or properly disposed of
13 upon the pediatric palliative care patient's death.>
14 24. Page 3, line 15, by striking <8.> and inserting <10.>
15 25. By renumbering as necessary.

ANDREWS of Polk